THACKERAY WOLFE LLP

Solicitors · 8 Carthusian Street, London EC1M 6EB · DX 42201 Finsbury · +44 (0)20 7188 4400

Our ref: TW/4471/RM

By email only

Whitfield Carter LLP
22 Bishopsgate
London EC2N 4BQ
For the attention of Ms Sarah Whitfield

9 December 2025

Dear Sirs

Tessaract Bioreagents Limited / Hartwell Pharma Limited — your letter before action of 11 November 2025

We act for Tessaract Bioreagents Limited and write in response to your letter before action of 11 November 2025. Please address all future correspondence to this firm. Liability is denied.

1. Our client accepts that batch TX-HX218-0461 was supplied under the Agreement and that an alternative supplier of the 4-chloro intermediate was used for that batch. It does not accept that this gives rise to any actionable breach or to the loss claimed.

2. Our client's case is that the substituted intermediate met the agreed incoming specification and that the resulting batch was, on the parameters tested and reported in the Certificate of Analysis, compliant. The impurity identified by your client was below the threshold detectable by the agreed release methods, and your client's own testing regime and handling are matters that will require investigation.

3. Our client further contends that any liability is in any event limited by clause 14 of the Agreement to £250,000. The suggestion that clause 14.4 disapplies the cap is rejected: the change of intermediate supplier was not a deliberate breach within the meaning of that clause, but an operational sourcing decision taken in good faith in response to a supply shortage, in circumstances where the incoming material was tested and released.

4. Your client's pleaded loss is not admitted and is, on its face, remote and/or unmitigated. In particular, the clinical-delay and standby costs are denied as too remote and as costs your client could and should have avoided.

5. Without any admission of liability, our client is willing to participate in a mediation. We invite your client to agree to a stay of any proceedings for that purpose.

Our client's rights are reserved. We look forward to hearing from you.

Yours faithfully

Thackeray Wolfe LLP